

consent of the survivors was too doubtful a title to be specifically enforced (*f*).

7. **Power to "trustees and survivors."**—A discretionary power to four trustees "and the *survivors* of them," cannot, it seems, be executed by the last survivor (*g*); for though a power to trustees may, in general, be held to survive, an intention to the contrary may be fairly inferred: the settlor may be supposed to have said, "I repose a confidence in any two of the trustees jointly, but in neither one of them individually."

To "trustee and survivor."—But if a power be limited to four trustees "and the *survivor* of them," it may well be argued that, on the death of one, the power may still be exercised by the survivors; for there can be no valid reason why a person who trusted the four jointly, and each of them individually, should refuse to repose a confidence in the survivors for the time being (*h*).

*8. **Trower v. Knightley.**—In a case before Sir J. [*605] Leach, a testator devised an estate to trustees upon trust as to one moiety for A. for life, remainder to her children at twenty-one, and as to the other moiety for B. for life, remainder to her children at twenty-one, and gave the trustees a power of sale "*during the continuance of the trust.*" A. died, and her children attained twenty-one, and the question was whether the trustees could, under the power, sell the whole estate, the children of B. being infants. The Vice-Chancellor held, that if the children of A. could call for a present conveyance of their moiety it would have the effect of depriving B. and her children of the benefit of the power of sale, and also of the leasing power given to the trustees, for that an undivided moiety could not advantageously be sold or leased, and that the testator must have meant to continue the powers of owner-

(*f*) *Sykes v. Sheard*, 2 De G. J. & S. 6.

(*g*) *Hibbard v. Lamb*, Amb. 309. Note, further directions were declared necessary on the death of *either* of the surviving executors, see *Eaton v. Smith*, 2 Beav. 236.

(*h*) See *Crewe v. Dicken*, 4 Ves. 97; in which case it seems to have been assumed that the receipt of the survivors would be a sufficient discharge.